

Indra Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2014 · Writ-C No. 40916 of 2014 · **Writ disposed; EE to consider transfer under clause 4.44(g).**

HEADNOTE

A writ seeking transfer of a tube-well electricity connection after chak allotment was disposed of with a direction that the Executive Engineer examine the request under clause 4.44(g) of the Electricity Supply Code, 2005 and pass an order in accordance with law, preferably within three months, if there is no other legal impediment.

FACTUAL SUMMARY

The petitioner, a tenure holder, claimed that a tube-well had been allotted in his chak by a Deputy Director of Consolidation order partly in his favour, that he was running the tube-well and depositing electricity bills, and that he was therefore entitled to have the connection transferred in his name. A separate writ (Writ Petition No. 59204 of 2012) challenging the consolidation order remained pending. He sought a mandamus to the Executive Engineer to pass orders on the transfer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

transfer of connection after chak allotment

HOLDING

A claim to have an electricity connection transferred in the claimant's name, including a tube-well connection said to follow a chak allotment, is to be examined and disposed of by the Executive Engineer under clause 4.44(g) of the Electricity Supply Code, 2005 in accordance with law; the High Court will not itself grant the transfer on writ. ¶ 1

PRINCIPLE TAGS

connection-transfer-requires-clearance-of-arrears-clause-4.44 A writ seeking transfer of a tube-well electricity connection after chak allotment was disposed of with a direction that the Executive Engineer examine the request under clause 4.44(g) of the Electricity Supply Code, 2005 and pass an order in accordance with law, preferably within three months ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED ON MERITS TO TRANSFER OF THE TUBE-WELL CONNECTION IN HIS NAME

Left to the Executive Engineer under clause 4.44(g), subject to there being no other legal impediment. ¶ 1